

Durgesh v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 16 December 2019 · WRIT - C No. 41534 of 2019 · **Writ disposed; petitioner to appear before Executive Engineer with objections; speaking final order within four weeks; coercive action stayed six weeks or until disposal of the objection; Section 127 appeal if aggrieved; recovery citation revives on default.**

HEADNOTE

Writ seeking quashing of an Executive Engineer's recovery certificate for Rs 3,91,702 electricity dues was disposed without a merits decision. The consumer was directed to appear before the Executive Engineer with objections and evidence; a speaking final order was to follow within four weeks; coercive action was stayed for six weeks or until disposal of the objection; a Section 127 appeal was left open if the consumer was aggrieved; non-appearance would automatically revive the citation.

FACTUAL SUMMARY

Durgesh, supplied by Purvanchal Vidyut Vitran Nigam Ltd., filed a writ to quash a recovery certificate dated 7 August 2019 issued by the Executive Engineer for Rs 3,91,702 against notice no. 7320 dated 20 June 2019 as electricity dues. He contended that the licensee was taking coercive recovery without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Division Bench disposed of the petition with directions rather than deciding the dues on merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation after speaking final order on dues recovery

HOLDING

Without deciding the electricity-dues recovery on merits, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks thereafter, stayed coercive action for six weeks or until disposal of the objection, whichever was earlier, and left the consumer to an appeal under Section 127 of the Electricity Act, 2003 if aggrieved by that final order; if the consumer failed to appear and file the objection on the date fixed, the recovery citation would stand revived automatically. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objections to the electricity-dues recovery, the Court left any further challenge to an appeal under Section 127 of the Electricity Act, 2003. ¶ 1

alternative-remedy-section-127-appeal The writ was disposed without quashing the recovery citation; the consumer was told it would be open to file an appeal under Section 127 if aggrieved by the Executive Engineer's final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RS 3,91,702 ELECTRICITY DUES AND THE RECOVERY CERTIFICATE DATED 7 AUGUST 2019

The Court took a lenient view and sent the matter to the Executive Engineer for a speaking final order without examining the quantum or the citation. ¶ 1

NOT DECIDED — ALLEGED COERCIVE RECOVERY WITHOUT HEARING AND WITHOUT FOLLOWING THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised by the petitioner but not adjudicated. ¶ 1

